

		as a basis for fee recovery but this section contemplates an award of fees as sanctions, rather than as a matter of costs, so it does not provide a valid basis for including a fee award in a section 1030 undertaking. Moving Defendants also point to Civil Code section 3426.4, which allows recovery of fees as costs by a prevailing party “if a claim of misappropriation is made in bad faith...” For the purposes of section 3426.4, to establish a claim is made in bad faith, there must be a showing of “ (1) objective speciousness of the claim, and (2) subjective bad faith in bringing or maintaining the action, i.e., for an improper purpose.” (<i>Cypress Semiconductor Corp. v. Maxim Integrated Products, Inc.</i> (2015) 236 Cal.App.4th 243, 260.) There is no evidence to support a finding that Plaintiff’s trade secret causes of action are brought in bad faith. Moving Defendants also seek to assert that they will incur \$55,000 in costs defending this action. Moving Defendants’ declaration, however, contains nothing more than assertions of this \$55,000 figure without any factual support. Merely listing estimated categories of costs does not set forth “the nature and amount of the costs and attorney's fees the defendant has incurred and expects to incur.” (Code Civ. Proc., §1030, subd. (b).) Plaintiff shall provide notice of this ruling.
2	Atiyeh vs. Zhu 2026-01573491	Motion – Other <i>Vacated. See minute order dated 9/8/26.</i>
3	Incentax, LLC vs. Allied West Paper Corporation 2025-01485830	Motion for Summary Judgment and/or Adjudication No tentative.
4	Kiani vs. Masimo Corporation 2024-01426785	Off calendar. <i>Vacated. See minute order dated 8/28/26.</i>
5	Kim vs. Hong 2025-01533601	Demurrer to Amended Complaint All parties and counsel are admonished that the meet and confer efforts with respect to this demurrer do not comply with California Code of Civil Procedure section 430.41, subdivision (a). Parties “shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to